

From: Lowe, Claire (EGLE)
Sent: 5/27/2026 10:50:26 AM
To: "Elaine J. Venema" <evenema@fveng.com>
Cc: "Jeff Dietlin" <utilities@cadillac-mi.net>; "Patrick Miller" <pmiller@cadillac-mi.net>
Subject: Cadillac WWTP IPP - Civil and criminal penalties

Good morning, Elaine,

In my comments on the last draft of the Cadillac WWTP procedures manual/SUO I noted that EGLE was waiting for an opinion from the attorney general's office regarding the minimum civil and criminal penalties for IPP. We have now been advised that POTWs must have authority to assess a civil penalty of at least \$1,000 a day for each violation. The following sections of the Cadillac IPP procedures manual will need to be revised to meet this minimum requirement:

- Section 8.1.R of the IPP procedures (page 31)
- The Enforcement Response Plan, section 2.E (page 140)
- The notice of violation template (page 460)

The current language under the Sewer Use Ordinance, Sec 42-528, (page 457), appears to meet the minimum requirement of \$1,000 per day, per violation.

Please include the above revisions in addition to my previous comments.

Thank you,

Claire Lowe

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